

		arbitration of disputes, case law provides for dismissal without prejudice of the class claims. Epic Systems, supra, 138 Sup. Ct. 1612; Stolt-Nielsen S.A. v. AnimalFeeds Int’l Corp. (2010) 559 U.S. 662, 686; Kinecta Alternative Financial Solutions, Inc. v. Superior Court (2012) 205 Cal. App. 4th 506, 510-11. Accordingly, plaintiff’s class claims are dismissed without prejudice. Defendant is ordered to give notice of the ruling.
108	Dempsey vs. La Jolla Group, Inc. 2024-01416569	Motion for Approval of Class Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that with two exceptions, they adequately address the previously identified issues. Accordingly, Jaime Dempsey; Jane Doe on behalf of her minor child J.D.; and Kaitlyn Vargas’s Motion for Preliminary Approval of Class Action Settlement is CONDITIONALLY GRANTED, pending submission of a further amendment to the long-form class notice and a further amended proposed order, as discussed below. This is a data breach class action. On 7/29/2024, Plaintiff Jaime Dempsey, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant La Jolla Group, Inc. (ROA #2.) The operative complaint is the first amended complaint (FAC), filed on 10/9/2024. (ROA #16.) The FAC added two Plaintiffs: (1) Jane Doe, on behalf of her minor child J.D.; and (2) Kaitlyn Vargas. The FAC alleges 8 causes of action, as follows: 1. Negligence; 2. Invasion of Privacy; 3. Breach of Implied Contract; 4. Breach of Fiduciary Duty; 5. Breach of Confidence; 6. Violation of California Unfair Competition Law, Cal. Bus. & Prof. Code § 17200, et seq.--Unfair Business Practices; 7. Violation of the California Customer Records Act (“CCRA”) Cal. Civ. Code § 1798.80, et seq.; and 8. Violation of the California Consumer Privacy Act (“CCPA”) Cal. Civ. Code § 1798.150, et seq. Defendant answered on 4/25/2025. (ROA #50.) On 12/5/2025, Plaintiffs filed the instant Motion for Preliminary Approval of the Class Action Settlement, and submitted the Settlement Agreement and Release and various forms of class notice for the Court’s review. On

4/9/2026, the Court continued the first hearing on the matter and asked Class Counsel to address various issues. (ROA #102.) Counsel has submitted supplemental materials, including an amended Settlement Agreement and Release (“Settlement Agreement”) and an amended Class Notice.

The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiffs’ class claims, with the Defendant La Jolla Group, Inc. agreeing to:

- (1) Pay for notice and administration expenses at the cost of \$17,925 (Settlement, ¶ 45);
- (2) Compensate Settlement Class Members who submit valid and timely claims, as follows:
 - a. Cash Compensation: \$95/person for the 2,293 California Subclass Members or \$45/person for the other 1,162 Settlement Class Members (Settlement, ¶¶ 3, 34, 43(c)); or
 - b. As an alternative to Cash Compensation, Out-of-Pocket Losses up to \$2,000/person (including Lost Time of up to \$100/person at a rate of \$25/hour for up to 4 hours), with an aggregate cap of \$50,000 (Settlement, ¶ 43(a));
- (3) Provide 24 months of Credit Monitoring Services with one national credit bureau that includes at least \$1 million in identity theft insurance for Settlement Class Members who submit valid and timely claims, which will cost Defendant \$2,380 to provide for all members of the Settlement Class (Settlement, ¶ 43(b));
- (4) Provide Service Award Payments to each of the Class Representatives at \$3,000 per named Plaintiff, subject to Court approval (Settlement, ¶¶ 47, 73); and
- (5) Pay attorneys’ fees and costs not to exceed \$225,000, as awarded by the Court (Settlement, ¶¶ 46, 75).

Based on a review of all papers submitted, including the Settlement Agreement, the Court finds the settlement falls within the range of what is considered fair and reasonable, subject to a final determination at the Final Approval hearing.

However, within ten (10) court days, Class Counsel must submit a further amended long-form class notice that provides a working link to the Court’s website in Section 3. The link added to Section 3 does not work and leads to a “404 Page Not Found” because the final quotation mark is included as part of the URL for the link.

Also within ten (10) court days, Class Counsel must submit a further amended Proposed Order that specifies the ROA number of the Supplemental Declaration of Ben Travis, to which the Amended Settlement Agreement is attached.

After Class Counsel makes these submissions, the Court will grant the Motion.

		The Motion for Final Approval will be heard on December 10, 2026 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the gross settlement amount absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Also at the Final Approval hearing, Class Counsel must also disclose whether counsel has any fee-splitting arrangement with any other counsel, or confirm none exists Additionally, at the Final Approval hearing, Plaintiffs and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement awards and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Each Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiffs are ordered to give notice of this Court's ruling within five (5) court days, and file proof of service.
109	Garcia-Reyes vs. Fastcility Corporation, a California corporation 2024-01430431	Motion for Approval of Class Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Joaquin Garcia-Reyes's Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 10/4/2024, Plaintiff Joaquin Garcia-Reyes, individually and on behalf of all others similarly situated, filed a complaint against Defendant Fastcility Corporation. (ROA #2.) The operative complaint is the first amended complaint ("FAC"), filed on 1/6/2025, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #23.) Defendant answered the FAC on 2/5/2025. (ROA #25.) On 10/30/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class Action